

Abhishek Kumar v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 13 October 2020 · Writ-C No. 16245 of 2020 · **Writ disposed of; liberty to approach Executive Engineer under clause 6.14.**

HEADNOTE

A writ seeking to quash an electricity recovery notice and to compel acceptance of arrears in easy installments is disposed of, without deciding the merits, with liberty to approach the Executive Engineer under clause 6.14 of the Electricity Supply Code, 2005. The Engineer is to decide the representation by a speaking and reasoned order in accordance with law within four weeks; the benefit of the order is lost if the consumer does not approach within two weeks.

FACTUAL SUMMARY

Abhishek Kumar filed a writ petition in the Allahabad High Court challenging a recovery notice dated 11 November 2019 issued by the electricity authority for dues of Rs. 2,85,999. He sought quashing of the notice, a direction to accept the arrears in easy installments, and a restraint on coercive action. Counsel stated he was ready to deposit as the authority might fix. Counsel for the Power Corporation submitted that the petitioner should approach the Executive Engineer under clause 6.14 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity arrears

HOLDING

On the Power Corporation's submission that a consumer seeking easy installments of electricity dues should approach the Executive Engineer under clause 6.14 of the Electricity Supply Code, 2005, the writ challenging a recovery notice and seeking installment facility is disposed of with liberty to approach the Executive Engineer within two weeks along with a representation. The Executive Engineer shall decide the representation by a speaking and reasoned order in accordance with law within four weeks thereafter. If the consumer does not approach within two weeks, the benefit of the order is not extended. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court did not itself grant installments or quash the recovery notice; it remitted the consumer to the Executive Engineer under clause 6.14 to seek installment payment of Rs. 2,85,999 arrears. ¶ 1

instalment-facility-clause-6.14-for-financial-distress The consumer sought easy installments of electricity arrears; the Court left the clause 6.14 facility to be considered by the Executive Engineer on a representation, without examining distress or granting the facility on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY NOTICE DATED 11.11.2019 IS LIABLE TO BE QUASHED

Left to the Executive Engineer on the consumer's representation under clause 6.14. ¶ 1

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO PAY RS. 2,85,999 ELECTRICITY DUES IN INSTALLMENTS UNDER CLAUSE 6.14

No merits grant or refusal; Executive Engineer to decide by a speaking order in accordance with law. ¶ 1

